EXCLUSIVE STRATEGIC TEAMING, NON-COMPETE, CONFIDENTIALITY AND MERGER FRAMEWORK AGREEMENT

This Exclusive Strategic Teaming, Non-Compete, Confidentiality and Merger Framework Agreement ("Agreement") is made and entered into as of July 2ND, 2026 ("Effective Date"), by and between:
Brownstone Construction, Inc., a Guam corporation ("Brownstone"), and
Kwansing Guam Construction LLC, a Guam limited liability company ("KSG").
Brownstone and KSG are collectively referred to as the "Parties."

ARTICLE 1 PURPOSE

The Parties desire to establish an exclusive long-term strategic relationship under which KSG shall serve as Brownstone's exclusive marine construction company for the pursuit and execution of marine, port, harbor, dredging, waterfront, heavy civil, and related infrastructure projects.

The Parties specifically agree to jointly pursue the **P-1500 Palau Port and Harbor Improvement Project**, with Brownstone serving as the Prime Contractor and KSG serving as Brownstone's exclusive marine construction subcontractor.

ARTICLE 2 EXCLUSIVE TEAMING

KSG irrevocably agrees that Brownstone shall be its sole and exclusive strategic construction partner for all marine-related projects within:

- Guam
- Republic of Palau
- Commonwealth of the Northern Mariana Islands (CNMI)
- Federated States of Micronesia (FSM)
- Republic of the Marshall Islands (RMI)
- Any other islands or territories located within Micronesia.

Without Brownstone's prior written approval, KSG shall not:

- submit any proposal;
- provide budget pricing;
- provide quotations;
- participate in interviews;
- provide equipment commitments;
- participate in any joint venture;
- provide technical assistance;
- provide engineering support;
- provide estimating services; or
- participate in any capacity

to any person, contractor, consultant, developer, government agency, or private owner pursuing marine construction work within the above territories.

ARTICLE 3 NON-COMPETE

During the term of this Agreement, KSG shall not directly or indirectly compete with Brownstone within the Territory.
Competition includes, but is not limited to:

- dredging;
- port improvements;
- harbor improvements;
- seawalls;

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- breakwaters;
- marine terminals;
- waterfront developments;
- pile driving;
- sheet piling;
- marine demolition;
- marine transportation;
- heavy civil marine construction; and
- any related marine infrastructure work.

ARTICLE 4 NON-SOLICITATION

KSG agrees that it shall not, directly or indirectly:

- solicit Brownstone employees;
- solicit Brownstone clients;
- solicit Brownstone teaming partners;
- solicit Brownstone subcontractors;
- interfere with Brownstone's business relationships;
- encourage any employee or consultant to terminate their relationship with Brownstone.

This obligation shall survive for three (3) years following termination of this Agreement.

ARTICLE 5 EXCLUSIVE PROPOSAL RIGHTS

All proposal opportunities received by KSG involving marine construction within the Territory shall immediately be referred to Brownstone.
Brownstone shall have the exclusive right to determine whether to pursue such opportunities.
KSG shall not pursue such opportunities independently.

ARTICLE 6 CONFIDENTIAL INFORMATION

All information obtained through this relationship including:

- pricing;
- estimating methods;
- bid strategy;
- suppliers;
- subcontractors;
- engineering documents;
- project contacts;
- client information;
- financial information;
- equipment utilization;
- schedules;
- technical reports;
- construction methods; and
- business opportunities

shall remain the exclusive confidential property of Brownstone.
KSG shall never disclose such information without Brownstone's written authorization.
These obligations survive indefinitely.

ARTICLE 7 OWNERSHIP OF PROPOSALS

All proposals prepared by Brownstone remain Brownstone's sole intellectual property.

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KSG acquires no ownership rights in any proposal, estimate, design, schedule, pricing, or technical submission prepared by Brownstone.

ARTICLE 8 MERGER FRAMEWORK

The Parties acknowledge that their long-term business objective is for KSG to become part of Brownstone.
Accordingly, the Parties agree to work exclusively toward a merger, acquisition, or other corporate restructuring whereby Brownstone shall acquire KSG, subject to:

- due diligence;
- agreement on valuation;
- financing;
- approvals of the owners or boards of directors;
- lender approvals, if required; and
- compliance with all applicable laws and regulations.

Until such transaction is completed, KSG shall operate in a manner consistent with Brownstone's strategic business objectives.

ARTICLE 9 GOOD FAITH

KSG agrees to cooperate fully with Brownstone in preparing all proposals and performing all contracts awarded during the term of this Agreement.

ARTICLE 10 RESOLUTION OF BREACH

The Parties acknowledge the importance of fulfilling their respective obligations under this Agreement.
In the event either Party believes the other has materially breached this Agreement, the Parties shall first make every reasonable effort to resolve the matter promptly through good faith discussions.
If the matter cannot be resolved through mutual discussions within a reasonable period of time, either Party may pursue such remedies as may be available under applicable law.

ARTICLE 11 DISPUTE RESOLUTION

The Parties agree that any dispute arising out of or relating to this Agreement shall, whenever reasonably possible, be resolved amicably through mutual consultation and cooperation.
If the Parties are unable to resolve the dispute through good faith negotiations, either Party may seek appropriate legal or equitable remedies in accordance with the applicable laws and jurisdiction specified in this Agreement.

ARTICLE 12 TERM

This Agreement shall remain effective for five (5) years from the Effective Date and shall automatically renew for successive one-year periods unless either Party provides at least ninety (90) days' prior written notice of non-renewal.
The confidentiality, non-solicitation, intellectual property, dispute resolution, and accrued rights provisions shall survive termination.

ARTICLE 13 GOVERNING LAW

This Agreement shall be governed by the laws of Guam.
The Parties consent to the exclusive jurisdiction of the Superior Court of Guam and the District Court of Guam for any dispute arising under this Agreement.

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ARTICLE 14 ENTIRE AGREEMENT

This Agreement constitutes the complete understanding between the Parties and supersedes all prior negotiations, discussions, and understandings.
No amendment shall be valid unless in writing and signed by both Parties.

SIGNATURES

BROWNSTONE CONSTRUCTION, INC.
By: ____________________
Name: Terry C. Kim
Title: President
Date: 02 July 2026

KWANSING GUAM CONSTRUCTION LLC
By: ____________________
Name: ROMMEL C. ZAPANTA
Title: PRESIDENT
Date: JULY 2026

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